

Hello,

My name is Sam Chapin. I am a senior software engineer, cybersecurity hobbyist, and consumer privacy advocate here in Minnesota.

I am sending you this letter in hopes of educating you about the potential consequences of either adding or renewing Automated License Plate Readers (ALPRs) in your community.

Let me be clear, I am not against ALPR devices when set up and used properly. Minnesota state law has one of the strictest requirements for the usage of ALPR devices by law enforcement agencies across the country, however it does not completely alleviate all issues with the technology (mainly that the oversight of law enforcement agencies to be compliant is scant and easy to evade).

As I go over in the rest of this letter, ALPR devices are insecure, ripe for abuse, and misuse of the technology can (and has) led to people's lives being ruined and subsequently, has caused community trust to erode. I urge you to take this matter seriously, as once an ALPR or network of ALPRs are set up, it is very hard to put that genie back in its bottle.

Cybersecurity issues

This section is mainly on ALPR devices and software from Flock Safety, as they are the most common stationary ALPRs and have the most amount of independent testing on their products.

In November of 2025, Journalist Benn Jordan uploaded a video titled “We Hacked Flock Safety Cameras in under 30 seconds” to YouTube¹ wherein he brings the following issues to light. Each bullet point starts with a timestamp for the video linked at the end of this page.

- (4:22) The camera can be turned into a debug mode (signified by a blue light) which enables trivial wireless access to the camera’s software. This debug mode can be entered with a **simple combination of button presses**.
- (5:30) There are exposed USB ports where an adversary can plug in a simple, **\$6 device** that acts like a keyboard and can **gain full (and remote) access to the device within seconds**.
- (6:25) The software is running in debug mode, which allows an adversary to easily modify or execute malicious code on the device. This means **an adversary can not only overwrite data, but also wipe any trace of their software intrusion (thus making it impossible to tell real versus doctored ALPR data)**.
- (11:45) **Flock cameras take photos when any movement is detected, not just when a license plate is detected**. This can include non-vehicle data such as pedestrians crossing the street (which would **run afoul of 13.824 subd. 2(a)**). Additionally, all images stored on device are **entirely unencrypted**.
- (14:10) In a segment on an unsecured Flock Safety API for their nationwide surveillance network (more on that in the next section of this document), they zoom out onto a map of the United States where it is clear that **at minimum 2 Flock Safety devices in the state of Minnesota were accessible on the nationwide network** (which has been known to be used by the Customs and Border Patrol agency without the permission from the law enforcement agency that owns the data²).
- (18:45) Flock Safety ALPR devices are running Android 8.1.0 (**which has not received any security updates since 2021** and has many top severity vulnerabilities -- 64 10.0 CVSS vulnerabilities by my count³). In conjunction with having negligible physical security, this is a recipe for disaster when it comes to the security and integrity of non-public vehicle and license plate data.

Other areas of concern:

- 404media reporting that the Customs and Border Patrol agency had been accessing ALPR data in Colorado (and other states) without getting direct consent from the law enforcement agency who owns said data.²

1: <https://www.youtube.com/watch?v=Pp9MwZkHiMQ>

2: <https://www.9news.com/article/news/local/flock-federal-immigration-agents-access-tracking-data/73-a8aee742-56d4-4a57-b5bb-0373286dfef8>

3: <https://www.cvedetails.com/version/565966/Google-Android-8.1.html>

Consumer privacy issues and concerns

I will again be referring to Flock Safety devices for this section as the main point of contention as their business practices are the most well documented.

In every contract that an entity signs with Flock Safety, they must agree to their terms and service, which is typically represented by a link to their terms and conditions on their website¹ (and are not given a copy of the current terms so it's very easy for conditions to be changed after the terms have been agreed upon – in fact the popular archival site web.archive.org is not allowed to archive snapshots of this site² so it's entirely unknown to the public what items Flock Safety has changed in their terms of service over a period of time).

In Flock Safety's terms and conditions, the Customer (in this case, a law enforcement agency) is given full and total control of the data generated from the ALPR devices they lease from the company (4.1 Customer Data and 4.2 Customer Generated Data). The very next condition states that **Flock is given a worldwide and perpetual license for using said data owned by the customer for use as training data in order to improve machine learning algorithms** (4.3 Training Data). On December 1st, 2025, 404Media (in conjunction with Wired) reported on an exposed online panel which Flock uses to coordinate with workers who annotate audio and visual data in order to better improve its machine learning algorithms³. **At least some of these workers are stationed in the Philippines**, which raises immense concern for data safety and privacy for Minnesotan and American citizens, especially as condition 11.10 (Export) states that data must not be exported outside of the United States due to regulatory issues.

1: <https://www.flocksafety.com/legal/terms-and-conditions>

2: https://web.archive.org/web/20250000000000*/https://www.flocksafety.com/legal/terms-and-conditions

3: <https://www.wired.com/story/flock-uses-overseas-gig-workers-to-build-its-surveillance-ai/?ref=404media.co>

ALPRs make stalking and harassment easier; police misuses of ALPR data

In November 2025, Skagit County Superior Court in Washington State rejected the motion to keep ALPR data secret, and that ALPR data is thus marked as public data and able to be accessed through the Washington Public Records Act.¹ In response, multiple law enforcement agencies paused or stopped use of their ALPR systems.² I bring this up as **Minnesota has its own history of (A)LPR public data controversy**. In 2012, the City of Minneapolis released a database of over 2 million license plate scans³ which, at the time, were considered public data. Swiftly, (then) Minneapolis Mayor R.T. Rybak worked to block the release and temporarily classify the data as non-public until after legislature could debate the issue. On September 24th, 2012, the Star Tribune posted the article “Aug. 17, 2012: City cameras track anyone, even Minneapolis Mayor Rybak”⁴ where srib **reporters combed through the database and created a list of locations where Mayor Rybak had been spotted visiting – this list, unlike the original article in non-archived form, is still available to this day**⁵.

If the above doesn’t persuade you into believing that this treasure trove of data is ripe for abuse, the following are real cases of stalking, harassment, and abuse perpetrated by police officers with their ease of access into mass surveillance data like ALPR data.

1. 2012: Former Twin Cities police officer received one million dollar settlement after “**officers looked up her private driver’s license data hundreds of times**”⁶ (driver’s license data).
2. 2013: Lakeville private eye latest to sue over misuse of DVS records⁷ (driver’s license data).
3. 2025: **Georgia police chief arrested for using Flock cameras for stalking and harassment**⁷ (ALPRs).
4. 2023: **Sedgwick (Kansas) police chief tracked ex-girlfriend 164 times using license plate cams**⁸ (ALPRs).

The latter two cases bring into question the chain of command for allowing outside access to ALPR data (statute 13.824 states authorization must come from the highest ranking member of the law enforcement agency, which in this case would have been the perpetrator).

1: <https://www.eff.org/deeplinks/2025/11/washington-court-rules-data-captured-flock-safety-cameras-are-public-records>

2: <https://www.snoho.com/news/2025/dec/03/everett-is-keeping-its-flock-cameras-running-as-other-cities-pause-here-is-why/>

3: <https://www.startribune.com/rybak-asks-state-to-keep-car-license-data-private/183453451>

4: <https://web.archive.org/web/20221006052106/https://www.startribune.com/aug-17-2012-city-cameras-track-anyone-even-minneapolis-mayor-rybak/166494646/>

5: <https://maps.google.com/maps/ms?msid=200203856994297696125.0004c763c06e0f430b233&msa=0&ll=44.980585,-93.246803&spn=0.089125,0.222988>

6: <https://www.twincities.com/2012/12/06/former-twin-cities-police-officer-who-won-1-m-in-settlements-over-cops-peeking-at-her-license-data-appears-on-today-show-w-video/>

7: <https://www.startribune.com/lakeville-private-eye-latest-to-sue-over-misuse-of-dvs-records/197904781>

8: <https://lookout.co/georgia-police-chief-arrested-for-using-flock-cameras-for-stalking-and-harassment-searched-capitola-data-earlier-this-year/story>

9: https://www.kake.com/home/sedgwick-police-chief-tracked-ex-girlfriend-164-times-using-license-plate-cams/article_21fdfdb5-5dc5-11ef-95c4-8be8baa3f10c.html

ALPR false positives destroying lives of ordinary citizens

On July 24th, 2025, CBS reported multiple cases of false positive results from ALPRs leading to wrongful stops, abuse of ALPR technology, and aforementioned stalking from police officers using ALPR data¹. These cases are:

1. 2018: Two brothers on their way to their parents for Thanksgiving are **held at gunpoint by a group of police officers after an ALPR falsely identified their vehicle as being stolen.**
2. 2024: **A twelve year old is handcuffed after an ALPR misread the last digit** of their older sister's license plate as a '7' instead of a '2' in Española, New Mexico.
3. A month later in the same jurisdiction, a seventeen year old honors student is **held at gunpoint after officers mistook their vehicle for one associated in an armed robbery.**
4. 2020: A mother and her family, including her six year old daughter, are pulled over in Aurora, Colorado and **held at gunpoint while forced to lie down on hot pavement. The culprit is an ALPR device that mistook their vehicle for a stolen motorbike registered in Montana.** This incident led to a **\$1.9 million settlement** from the city four years later.

1: <https://www.cbsnews.com/news/license-plate-readers-alpr-mistakes/>